IP INFORMATION DOCUMENT

LEXTRIA RESEARCH

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*Details mentioned here are for illustration purpose only

IP INFORMATION DOCUMENT - PATENT

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STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

STEP 1
Filling Invention Disclosure (IDF) Form by the inventor

STEP 2
Call to discuss the invention with Team Lextria to decide filing of PS or CS

STEP 3
Drafting of the invention by Team Lextria

STEP 4
Confirmation of the draft and confirmation of the inventor details by the Inventors

STEP 5
Filing of the Application and Communication of Application Number with Ack and Form 1 for Signature

STEP 6
Providing Signed Form 1 within 3 months and providing evidence within 12 months in case of PS

PS - Provisional Specification
CS - Complete Specification

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TESTS FOR SELECTING A PATENT APPLICATION

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Whether the idea has been tested for feasibility ?

1

- No, need some time for R&D
  - File provisional and get 12 months time
- Yes, have clarity over the product that goes into market
  - File complete specification

2

Complete specification already filed

- Observed just an improvement
  - File patent of addition
- Observed significant change
  - Convert into provisional application and later follow-up with a complete specification
- Observed a different point of novelty
  - File divisional application

3

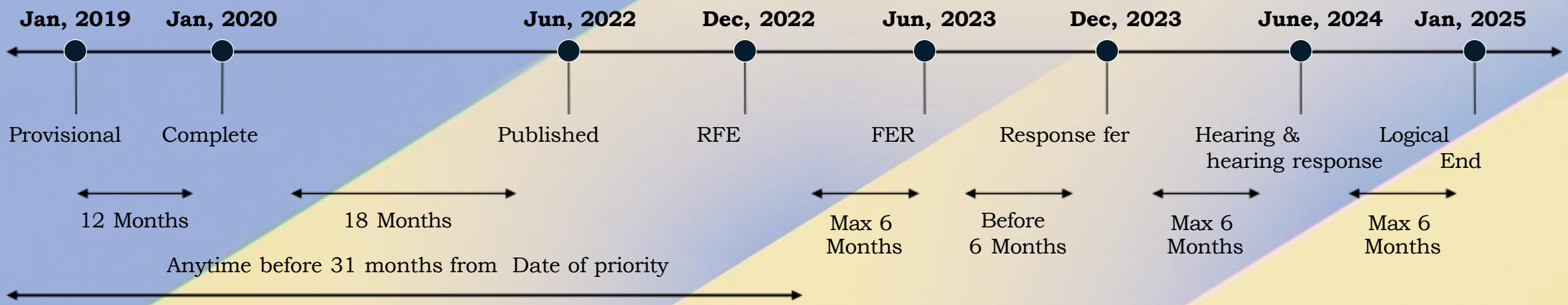
Product is not finalised but multiple inventive steps are observed

- File provisional specification to secure priority to each of such steps
- Follow-up with a complete specification before 12 months from data of filing first provisional specification

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PATENT CYCLE - EXEMPLARY SCENARIO:

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Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to be paid before 31 months from date of priority.
3. FER: First Examination Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expedited examination have stipulated govt. fees as discussed in the Schedule of Fees

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SOME Keywords

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APPLICANT	INVENTOR
Applicant may be a Legal person or a natural person	Inventor should always be a natural person
PROVISIONAL SPECIFICATION	**COMPLETE SPECIFICATION**
Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure	Complete specification is filed with best possible information and evidence of validation to secure grant
First Examination Report (FER)	**HEARING**
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

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SOME FAQs

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Sl. No	QN	ANS
1	What would happen if complete specification is not filed after provisional specification?	The Application would be abandoned; the priority would be lost. However, it shall not affect novelty so it can be refiled.
2	Can time to file complete specification be extended ?	Yes, it can be extended up to 6 months with fees and with loss of priority.
3	How much time it might take for the patent to be published and granted ?	It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month until then the Application is confidential. It might take about 12 to 30 months for the patent to be granted.
4	Is it compulsory for a prototype to be made ?	As per patent act, it's important to provide best method of working and evidence of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity.

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Quotation for Patent Filing

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Sl. No	Service	Item	Official Fees	Service Fees	Total Fees
1	Patentability Search	Non-Paid Databases	0	No fee	No fee
2	Application for patent	With Provisional Specification	INR 1600	INR 12000	INR 13600
		Complete Specification within 12 months	INR 0	INR 11500	INR11500
		OR			
		Direct Complete Specification filing	INR 1600	INR 23500	INR 25100
3	Publication & examination	Request for early publication and Request for expedited examination - Form 9 and Form 18A	INR 10,500	INR 2,500	INR 13,000
		OR			
		Request for early publication and Request for examination - Form 9 and Form 18	INR 6,500	INR 2,500	INR 9,000
4	Reply to examination	Reply to First Examination Report	0	INR 18,000	INR 18,000
5	Hearing	Hearing Before Controller	0	INR 8,000	INR 8,000
6	Written Submission	Communicating final written Submission	0	INR 20,000	INR 20,000

Government fees for large entities shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹2,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST/RCM.